

Plaintiff's Reliance on the Complaint

Progressive objects to Crosley's reliance on factual allegations in Progressive's own complaint. Facts alleged in an operative pleading may be relied upon in summary judgment. (*Hutton v. Fidelity National Title Co.* (2013) 213 Cal.App.4th 486, 493.) The objection is therefore overruled.

5. 9:00 AM CASE NUMBER: C23-02289
CASE NAME: PROGRESSIVE WEST INSURANCE COMPANY VS. CRAIG CROSLY
*HEARING ON MOTION IN RE: LEAVE TO FILE 1ST AMENDED COMPLAINT
FILED BY:
TENTATIVE RULING:

Progressive West Insurance Company's Motion for Leave to File a First Amended Complaint is **denied**.

Progressive seeks to amend the complaint to allege that cancellation was based not solely on Crosley's failure to provide a VIN, but on his failure to provide a VIN or other numeric identifying information necessary to verify or classify the Golf Cart, and that the policy renewal was effectively conditional pending receipt of that information.

Because the court grants summary judgment in Crosley's favor on Progressive's complaint, the motion for leave to amend is moot. The dispositive issue on summary judgment is whether Progressive had statutory authority to cancel the policy mid-term based on the asserted underwriting deficiency. As explained in the court's summary judgment ruling, mid-term cancellation is barred where the circumstances relied upon by the insurer existed prior to renewal and were known to the insurer at the time of renewal. Here, Progressive knew that lacked information needed to determine the vehicle's classification and assess the risk when it renewed Crosley's policy.

6. 9:00 AM CASE NUMBER: C23-02575
CASE NAME: MATTHEW ANDRADE VS. CHRIS PETLOCK
*HEARING ON MOTION FOR DISCOVERY MONETARY SANCTIONS FOR EGREGIOUS DISCOVERY MISCONDUCT FILED BY ANDRADE, MATTHEW / SEE MINUTES DATED 1/28/2026
FILED BY:
TENTATIVE RULING:

Summary

Plaintiff Matthew Andrade's ("Plaintiff" or "Andrade") Motion for Sanctions against Defendant Chris Petlock ("Defendant" or "Petlock") is **denied** as set forth herein.

Background

This is a continued hearing from January 28, 2026. The Court had ordered the parties to meet and confer to resolve Plaintiff's request for sanctions in the amount of \$46,343.15 for costs and fees incurred in taking the deposition of Defendant Chris Petlock, who was, at all relevant times, the Human Resources Manager for Defendant Pleasant Hill Recreation and Park District ("District"). The Court ordered counsel to submit declarations outlining their meet and confer efforts no later than